

Rakesh Kumar Pandey v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 6 July 2022 · Writ-C No. 18295 of 2022 · Writ-C No. 18295 of 2022 ·
Writ disposed; relegated to clause 6.5 with eight-week stay.

HEADNOTE

Without examining the demand on merits, a writ seeking quashing of a recovery citation is disposed by relegating the consumer to an objection under para 6.5 of the U.P. Electricity Supply Code, 2005, to be decided time-bound after hearing, with a short stay of coercive action.

FACTUAL SUMMARY

Rakesh Kumar Pandey sought certiorari to quash an order dated 21 June 2021 and a recovery citation dated 30 May 2022 issued by the Tehsildar, Meja, District Prayagraj. The Power Distribution Corporation was respondent no. 2. Its counsel stated on instructions that the petitioner could file an objection against the impugned demand, which would be decided in accordance with law within a time-bound period.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-dispute-alternate-remedy

HOLDING

Without expressing any opinion on merits, the writ is disposed of with liberty to submit an objection under para 6.5 of the U.P. Electricity Supply Code, 2005 before the distribution licensee within four weeks; if submitted in time, the licensee shall decide it in accordance with law within the next four weeks after hearing. Coercive action on the impugned demand or notice is stayed for eight weeks or until disposal of the objection, whichever is earlier. ¶ 4-5

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ The writ challenging the demand and recovery citation was not decided on merits; the consumer was sent to a para 6.5 objection before the licensee. ¶ 4

6.5-representation-as-appropriate-remedy On the licensee's statement, a time-bound para 6.5 objection was treated as the proper forum for the disputed demand. ¶ 3-4

clause-6.5-statutory-remedy-disputed-bill The Court directed the licensee to decide a para 6.5 objection to the impugned demand in accordance with law after hearing, and stayed coercive recovery meanwhile. ¶ 4-5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE ORDER DATED 21.6.2021 AND THE RECOVERY CITATION DATED 30.5.2022

The Court expressly declined to express any opinion on the merits of the petitioner's case. ¶ 4